

STATE OF NEW YORK

10279--A

IN ASSEMBLY

February 20, 2026

Introduced by M. of A. WEPRIN -- read once and referred to the Committee on Insurance -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the insurance law, relating to prohibiting insurance discrimination on the basis of an insured's marital status following the death of the insured's spouse

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 2607 of the insurance law, as amended by section 1
2 of subpart D of part J of chapter 57 of the laws of 2019, is amended to
3 read as follows:

4 § 2607. Discrimination because of sex or marital status. (a) (1) No
5 individual or entity shall refuse to issue any policy of insurance, or
6 cancel or decline to renew the policy because of the sex or marital
7 status of the applicant or policyholder or engage in sexual stereotyp-
8 ing.

9 (2) Notwithstanding any other provision of this chapter, no insurer
10 providing any type of insurance coverage, including but not limited to
11 property, casualty, homeowner's, renter's, or automobile insurance,
12 shall: refuse to continue to insure, cancel, or decline to renew a poli-
13 cy; limit the amount, extent, or kind of coverage available; or increase
14 a policyholder's premium rate or impose less favorable terms or condi-
15 tions upon renewal, solely because the applicant or policyholder is
16 widowed or their marital status otherwise reflects the death of a
17 spouse.

18 (b) For the purposes of this section, "sex" shall include sexual
19 orientation, gender identity or expression, and transgender status.

20 § 2. This act shall take effect on the first of January next succeed-
21 ing the date on which it shall have become a law and shall apply to any
22 policy issued, delivered, renewed, and/or modified on or after the
23 effective date of this act.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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